

NCRB SPECIAL CELL // DIGITAL OFFENCES INVESTIGATION CASE RECORD

(Under Sections 66 & 66C, Information Technology (Amendment) Act, 2008; Sections 201, 420, 467, 468, 471 & 120B, Indian Penal Code, 1860)

1. CASE TITLE / JUDICIAL REFERENCE:

Field	Case Record
Case Title	Dalip Kumar vs. State of Uttarakhand and Another
Court	High Court of Uttarakhand at Nainital
Judgment Date / Citation	08-10-2024 2024:UHC:7503
Presiding Judge	Hon'ble Sri Justice Rakesh Thapliyal
Connected Applications	Criminal Miscellaneous Application No. 917 of 2021 (Dalip Kumar); Criminal Miscellaneous Application No. 1701 of 2022 (Ankush Jain)
Counsel	Petitioners: Mr. Ramji Shrivastava and Mr. Sagar Kothari. State: Mr. Pratiroop Pandey, AGA, with Mr. B.C. Joshi, AGA
Reserved / Delivered	24-08-2024 / 08-10-2024

2. FIR / DIGITAL OFFENCES CASE PROFILE:

Field	Case Record
Police Station	Cyber Police Station, Dehradun
FIR No. & Date	FIR No. 0019 of 2020 14-07-2020
Reporting Officer	Rashmi Pradhan, Nodal Officer, e-Rawanna (deceased)
Information Type	Alleged unauthorised access, fraudulent identity generation and manipulation of electronic mineral-transport records
Primary Platform	e-Rawanna portal
District Concerned	Pauri Garhwal
Investigating Agency	Uttarakhand Police / Cyber Police Station, Dehradun
Judicial Proceedings	Criminal Case No. 2375 of 2021 and Criminal Case No. 1471 of 2022

3. INVOKED ACTS / PENALTIES:

Statute	Provisions	Alleged Application
Information Technology Act, 2000	Sections 43, 66, 66C and 81	Unauthorised access, dishonest/fraudulent computer-related acts, identity misuse and overriding effect
Indian Penal Code, 1860	Sections 201, 420, 467, 468, 471 and 120B	Causing disappearance of evidence, cheating, forgery, use of forged documents and conspiracy
Code of Criminal Procedure, 1973	Sections 482 and 197	Quashing applications; issue of sanction for public servant raised by Ankush Jain

4. IDENTIFIED ENTITIES & TECHNICAL TRACE MATRIX

Designation / Role	Entity / Identifier	Communication Trace	Linked Digital / Financial / Logistical Details
Applicant / Alleged Beneficiary	Dalip Kumar	Phone alleged: 6395073630	Businessman; partner, M/s Balaji Associates; GSTIN 05AAOFB5527H1ZF; phone allegedly destroyed on 27-05-2020
Applicant / NIC Scientist-C	Ankush Jain	Mobile: 9897896108	NIC Uttarakhand State Unit; alleged portal access on 05-03-2020, 25-05-2020, 26-05-2020 and 27-05-2020; laptop and router collected
Purchaser / Alleged Associate	Satish Kumar Lodhi	Associated with Anuj Pal	Arrested on 21-11-2020
Alleged Operational Associate	Anuj Pal	Named during investigation	Charged in Criminal Case No. 2375 of 2021
Technical / Operational Associates	Anil Kumar and Gagan Tyagi	Identified during investigation	Arrested; documents reportedly recovered from possession of accused persons
Digital Record / User ID	M061022325	GSTIN: 05NAFE384QIZI	Allegedly generated illegally and later suspended
Electronic Transport Record	e-Rawanna No. IM22325000982	e-Rawanna portal	Linked to disputed mineral transportation records

5. INVESTIGATION NARRATIVE & INCIDENT BRIEF

On 14-07-2020, Rashmi Pradhan, Nodal Officer for the e-Rawanna system, lodged FIR No. 0019 of 2020 at Cyber Police Station, Dehradun. The FIR concerned alleged illegal creation and use of digital identity M061022325 and e-Rawanna No. IM22325000982 for transportation of minor minerals in District Pauri Garhwal.

The disputed identity was examined on the e-Rawanna portal. The District Mining Officer stated that no mining lease had been issued in District Pauri Garhwal, following which the identity was suspended. Sale records for 26-05-2020 to 27-05-2020 allegedly reflected 25,000 tons of minor minerals and royalty of Rs. 37,09,200 at Rs. 148.36 per ton. Records between 05-03-2020 and 18-03-2020 in the name of Vikram Singh Bisht allegedly reflected 20,000 tons of minor minerals and royalty of Rs. 72,000.

NIC technical personnel were contacted for relevant data and backup. The authorities were informed that requested data was unavailable from the data centre owing to technical reasons. The Investigating Officer issued notice under Section 91 CrPC and Section 67C of the IT Act on 09-09-2020.

The investigation alleged that Ankush Jain, then Scientist-C at NIC Uttarakhand State Unit, unauthorisedly accessed the e-Rawanna portal. It further alleged that Dalip Kumar contacted Ankush Jain using mobile No. 6395073630, while Ankush Jain used mobile No. 9897896108. Dalip Kumar, Satish Kumar Lodhi and Anuj Pal were arrested on 21-11-2020.

6. SYSTEM-ACCESS & PROCEDURAL LOG

Date / Period	Event	Investigative Significance
05-03-2020 to 18-03-2020	Alleged mineral records generated in name of Vikram Singh Bisht	20,000 tons; royalty of Rs. 72,000 stated
25-05-2020 to 15-06-2020	Disputed ID examined by Nodal Officer	Information provided to District Mining Officer
26-05-2020 to 27-05-2020	Sale record of disputed ID examined	25,000 tons; royalty of Rs. 37,09,200 stated
27-05-2020	Alleged destruction of Dalip Kumar phone	Phone No. 6395073630 said to have been destroyed
14-07-2020	FIR registered	Sections 66 and 66C IT Act
05-03-2021	Chargesheet filed against Dalip Kumar, Anuj Pal and Satish Kumar	Criminal Case No. 2375 of 2021
05-01-2022	Separate chargesheet against Ankush Jain	Cognizance on 04-03-2022; Criminal Case No. 1471 of 2022

Date / Period	Event	Investigative Significance
08-10-2024	High Court judgment	Both Section 482 CrPC applications allowed

7. JUDICIAL FINDINGS & FINAL DISPOSITION

1. The Court held that the Information Technology Act, 2000 is a special enactment providing a complete framework for offences involving electronic records, computer systems and unauthorised computer-related acts.
2. It found that conduct alleged under the FIR—unauthorised access, downloading, alteration, destruction and manipulation of electronic data—falls within Section 43 read with Section 66 of the IT Act when done dishonestly or fraudulently.
3. Relying on *Sharat Babu Digumarti v. Government (NCT of Delhi)*, the Court held that where the special IT Act provisions cover the criminal act, their overriding operation under Section 81 excludes application of corresponding general IPC provisions to the same factual conduct.
4. The Court allowed both applications under Section 482 CrPC and quashed Criminal Case No. 1417 of 2022, *State v. Ankush Jain*, and Criminal Case No. 2375 of 2021, *State v. Anul Pal and Another*, pending before Judicial Magistrate-II, Dehradun.
5. The authorities were left free to decide the appropriate course of investigation pursuant to FIR No. 0019 of 2020, particularly under the special mechanism of the Information Technology Act.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023 — SECTION 63 DIGITAL RECORD INTEGRITY CERTIFICATE

This formatted digital case record has been reconstructed solely from the supplied judicial text in *Dalip Kumar vs. State of Uttarakhand and Another*, 2024:UHC:7503, decided on 08-10-2024. The record preserves the supplied case-specific judicial, procedural and technical details and presents them in an NCRB Special Cell-style investigation format.